Ogboinbiri 5MW Site Development & Revenue Sharing Agreement

THIS SITE DEVELOPMENT AND REVENUE SHARING AGREEMENT ("Agreement") is entered into as of 02/04/2025 by and between:

BETWEEN:

NRG BLOOM INC, a company organised under the laws of Quebec, Canada (hereinafter referred to as "NRG BLOOM")

AND

TON INFRASTRUCTURE LTD, a company incorporated under the laws of Alberta, Canada (hereinafter referred to as "TON"),

HEREINAFTER collectively referred to as the “Parties”

EFFECTIVE DATE: April 2, 2025

RECITALS:

WHEREAS, NRG BLOOM has secured a Power Purchase Agreement (PPA) with Shugamines for the energy rights to develop a proof of concept on the Ogboinbiri Bitcoin mining site; with capacity of 5MW (“Ogboinbiri 5MW Site”)

WHEREAS, TON will fund the required cost of setting up the mining site, including infrastructure and the Management Fee.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows:

1. Scope of Agreement

The Parties agree to pursue the development of the Ogboinbiri 5MW Site in the Baylesa state of Nigeria.

TON shall procure and finance the development of the infrastructure necessary to operate the mining site. The scope of the proof of concept will be the first TON supplied container.

NRG BLOOM shall perform the mining operations, maintenance, site access, local compliance, and PPA enforcement to ensure optimal mining operations for the benefit of the

Parties. NRG BLOOM shall be solely responsible for obtaining and maintaining all permits, licenses, and approvals required. NRG BLOOM shall ensure full compliance with all applicable laws and regulations related to cryptocurrency mining, foreign exchange, environmental regulations, energy use, import/export, employment, and data protection.

Following a successful proof of concept, the Parties will mutually agree upon the deployment schedule and technical details including operational power schedule, miner type and site configuration of the Ogboinbiri 5MW site.

Ton shall have sole discretion to determine the total investment cap for each phase of the project. All infrastructure and equipment procured with TON's investment shall remain property of TON, subject to the termination provisions in section 8.

2. Revenue Sharing

The net revenue from Bitcoin mining shall be distributed monthly as per the following schedule:

Proof of concept (first container deployment):

- 25% to Shugamines and the local community, as stipulated by the PPA.
- Management fee is paid out of total site revenue
- The remaining revenue shall be split:
    - 40% to NRG Bloom
    - 60% to TON

3. Management Fee

The parties agree that NRG Bloom will receive a Fee (the "Management Fee") from the total site revenue for services outlined in Appendix B from each monthly distribution from the mining operation.

In consideration of this Management Fee, NRG Bloom agrees to provide the services outlined in Appendix B including but not limited to operational oversight, technical personnel, site support, and legal and compliance to support the effective optimization of mining performance for the site power available on the first day of the Month. NRG Bloom agrees that time is of the essence for all site maintenance requirements which impact the mining hashrate.

4. Term and Renewal

This Agreement shall commence on the date hereof and remain in force for a period concurrent with the PPA (5 years), subject to renewal upon mutual consent.

5. Phased Development

This agreement shall be implemented in phases, with the proof of concept (first container) constituting Phase 1. TON shall have the absolute right, exercisable in its sole discretion, to discontinue participation in the project after completion of any phase. If TON elects not to proceed beyond any phase, TON shall provide written notice to NRG BLOOM and shall have no further financial obligations beyond those already incurred for the completed phase(s). TON's election not to proceed with any phase shall not constitute a breach of this Agreement and shall not entitle NRG BLOOM to any damages or compensation beyond existing revenue sharing agreements from completed operations.

6. Reference to Additional Agreements

The parties acknowledge that this Agreement is entered into in conjunction with the Power Price Agreement (PPA), and the Management Services Agreement between the Parties. The parties agree to act in accordance with the terms of such agreements, and to the extent possible, ensure consistency between this Agreement and any related agreements. In the event of a conflict, the terms of this Agreement shall govern unless expressly agreed otherwise in writing.

6. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall be resolved through a first attempt of good-faith negotiations for thirty (30) days. If unresolved through negotiation, the dispute shall be submitted to mediation. If mediation fails to resolve the dispute within forty-five (45) days, it shall be submitted to arbitration in accordance with the laws of the federal Republic of Nigeria.

7. Miscellaneous

This Agreement may only be amended in writing signed by both parties. It represents the full understanding between the parties and supersedes any prior agreement.

8. Termination and Asset Ownership

TON may terminate this Agreement at any time upon thirty (30) days' written notice to NRG BLOOM. NRG BLOOM may terminate this agreement at any time after TON’s investment has been recovered from profits upon thirty (30) days’ written notice to TON.

Upon termination:
TON shall retain ownership of all infrastructure, equipment, and miners procured with its investment.
TON shall have the right to remove its equipment from the site within ninety (90) days of termination.
If TON elects not to remove certain equipment, it may sell such equipment to NRG BLOOM at fair market value.
Revenue sharing shall continue for mining operations conducted up to the effective date of termination.

9. Indemnification

NRG BLOOM shall indemnify, defend, and hold TON harmless from any claims, losses, liabilities, damages, fines, penalties, costs, and expenses arising from regulatory non-compliance. In the event of regulatory changes that materially affect operations, NRG BLOOM shall promptly notify TON, take necessary steps to ensure continued compliance, bear all costs associated with adapting to such changes, and if changes render operations illegal or commercially infeasible, TON may terminate without penalty. TON shall have no responsibility or liability for any regulatory matters related to the development or continued operation of the Ogboinbiri 5MW Site.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first above written.

Makir (Apr 5, 2025 14:50 EDT)

[Authorized Signatory, NRG Bloom]

Marley Broda

[Authorized Signatory, TON]

Attachments:
Appendix A: Ogboinbiri 5MW Power Purchase Agreement
Appendix B: NRG Bloom Management Fee Structure

POWER PURCHASE AGREEMENT

This Power Purchase Agreement ("Agreement") is made and entered into as of the 4th of April 2025, by and between:

1. **Shugamine Ltd**, a company duly registered and existing under the laws of Nigeria, with its principal place of business at Suite 108, Elyon Plaza, 1st Avenue, Gwarimpa, Abuja ("Shugamine"), and
2. **NRG Bloom**, a company duly registered and existing under the laws of Canada, ("NRGBloom").

WHEREAS:

A. Shugamine Ltd leases the 5MW power site located at Ogboinbiri, Bayelsa State (the "Site").
B. Shugamine Ltd serves as the Power Broker and community consultant, facilitating NRG Bloom's operations at the Site.
C. NRG Bloom intends to utilize the Site for Bitcoin mining operations and agrees to bear the total cost of setting up and running the facility.
D. Both parties agree to a five (5) year agreement for a 25% hashrate share for the power cost.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the parties agree as follows:

1. Term

This Agreement shall commence on 04/04/2025 and shall remain in effect for a period of five (5) years unless earlier terminated or extended in accordance with the terms herein.

2. Responsibilities of Shugamine Ltd

Shugamine Ltd agrees to:

- Lease the 5MW power site at Ogboinbiri, Bayelsa State.
- Facilitate NRG Bloom's operations by acting as the Power Broker and community consultant.
- Pay the power cost for the site during the Agreement's duration.
- Serve as the liaison with the local community to ensure smooth operations.

Shugamine

3. Responsibilities of NRG Bloom

NRG Bloom agrees to:

- Bear the total cost of setting up the mining site, including infrastructure and operational expenses.
- Handle and manage the day-to-day operations of the site.

4. Revenue Sharing & Hashrate Allocation

- Shugamine shall be entitled to 25% of the hashrate as the Power Broker for the duration of the Agreement.
- NRG Bloom shall retain 75% of the hashrate from the Site.

5. Power Supply & Costs

- Shugamine shall be responsible for all power costs associated with the Site.
- NRG Bloom shall ensure energy-efficient mining operations to optimize power usage.

6. Compliance & Regulations

Both parties agree to adhere to all applicable laws, regulations, and industry best practices in relation to power consumption, environmental standards, and community engagements.

7. Dispute Resolution

Any disputes arising from this Agreement shall first be resolved through good-faith negotiations. If unresolved, disputes shall be settled through arbitration in accordance with the laws of the Federal Republic of Nigeria.

8. Termination

This Agreement may be terminated by mutual consent or if either party materially breaches its obligations and fails to remedy such breach within [30] days of written notice.

9. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Nigeria.

Shugamine

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the Effective Date.

Shugamine Ltd:

Okuku Nelson UDOMAH
[CEO, Shuagmine]
Mobile: +2348166523396
Email: oudomah@shugamine.com

NRG Bloom:

Makir Volcy
[CEO, NRG Bloom]

Mobile: +1 514 602 5411

Email: Makir@nrgbloom.com

Shugamine

NRG Bloom Management Fee Structure

Prepared for: TON INFRASTRUCTURE
Prepared by: NRG BLOOM
Date: 02/04/2025

Overview

To ensure continued uptime, performance optimization, site security, and legal compliance across our growing Bitcoin mining operations, NRG Bloom implements a tiered management fee structure based on installed capacity (MW) at each location.

This model is designed to reflect operational needs while remaining cost-effective and scalable for both our team and partners.

Site 1 – Ogboinbiri Site (5MW)

Capacity: Up to 5 MW

Component	Fee
Base management Fee (2 MW)	$5000 / month
Variable Fee (per MW)	$800 per MW (up to 5)
Maximum Monthly Fee (5 MW)	$7400 (max cap)

Example Fee scenarios - site 1

Deployed Capacity (MW)	Monthly Fee
2 MW	$5000
3 MW	$5800
5 MW	$7400

Site 2 – Obrikom Site (10MW)

Capacity: Up to 10 MW
Discounted Fee Structure to reflect shared operational resources and scaling benefits.

Component	Fee
Base management Fee (3 MW)	$2000 / month
Variable Fee (per MW)	$500 per MW (up to 10)
Maximum Monthly Fee (10 MW)	$5500 / month

Example Fee Scenarios – Site 2

Deployed Capacity (MW)	Monthly Fee
3 MW	$2000
5 MW	$3000
10 MW	$5500

What the Management Fee Covers

- **Operational Oversight** (onsite supervisors, management, reporting)
- **Technical Personnel** (mining technicians, electricians, cyber security)
- **Site Support** (security, cleaners, pest control, groundskeepers)
- **Legal & Compliance** (employment contracts, regulatory oversight)
- **Executive Oversight** (partner relations, scaling coordination)

Notes

- This structure ensures NRG Bloom can deliver consistent operational performance and scale efficiently across multiple sites.
- All fees include core staffing, legal, contingency, and strategic oversight.
- As always, minor adjustments may occur as we refine our operations, but we do not anticipate any major changes to the model.

Scope of work:

Site Operations Management

-Provision of remote monitoring capabilities

-Facility monitoring and environmental control (temperature, humidity, airflow)

-Power management and optimization

-Network infrastructure maintenance and troubleshooting

-Implementation of cooling solutions and heat management systems

Equipment Management

-Mining hardware deployment, configuration, and optimization

-Miner performance monitoring and tuning

-Hardware failure detection and replacement

-Firmware updates and software management

-Hash rate optimization across mining equipment

Security Operations

-Physical security protocols and access control

-Surveillance system management

-Network security implementation

-Protection against unauthorized access

-Incident response planning and execution

Maintenance Programs

-Preventive maintenance scheduling for all equipment

-Filter cleaning

-Routine cleaning of mining hardware to prevent dust accumulation

-Power system inspections and maintenance

-Container maintenance and optimization

-Infrastructure repairs

Operational Requirements

Operational Manual Compliance: NRG BLOOM shall strictly follow TON's maintenance and operational manual. Any deviation from TON's specified procedures must be approved in writing by TON.

Performance Metrics:

Response Time: Any issues affecting mining operations must be addressed using a failure class system:

Class A issues (high importance and urgent – immediate notification):

- Critical miner overheating (Greater than 15% of miners above maximum safe temperature)
- Sudden loss of a PDU
- Sudden loss of a main breaker
- Loss of a network switch or network connection of the container

Class B issues (high urgency but not high importance – notification with diagnosis within 1 hour):

- Potential critical miner overheating (temperature increase to max safe value)
- Loss of a PDU phase or PDU fuses popping
- Loss of a main breaker phase
- Loss of a network switch
- Inconsistent hash rate

Class C issues (medium urgency or medium importance – notification with diagnosis within 4 hours):

- Miners rebooting more than expected
- Miner hashrate inconsistencies

The above issues require an analysis report sent to TON within 8 hours of detection or notification

Mining Efficiency: Maintain a minimum of 95% of expected hashrate based on manufacturer specifications for the equipment, under normal operating conditions.

Reporting: Provide weekly operational reports to TON.

Uptime Accountability:

NRG BLOOM shall be responsible for maintaining system availability excluding:

a) Scheduled maintenance (limited to 36 hours per month with 72-hour advance notice)

b) Force majeure events

c) Hardware failures that are demonstrably due to manufacturing defects

d) Power outages outside NRG BLOOM's control

NRG BLOOM shall document all downtime causes with evidence to clearly differentiate between infrastructure issues and container/equipment issues.

A joint review process will assess responsibility for any disputed downtime events.

Fee Adjustments:

Failure to meet the Mining Efficiency standard for over 72 consecutive hours will result in a 10% reduction in the Management Fee for that month.

Failure to respond to critical issues within the specified response time will result in a 5% reduction in the Management Fee for each occurrence.

Recurring performance failures across three consecutive months shall entitle TON to review the Management Fee structure.

Monitoring and Verification:

NRG BLOOM shall provide TON with real-time access to monitoring systems tracking all performance metrics.

TON reserves the right to install additional monitoring equipment at its discretion.

Monthly performance reviews will be conducted to assess compliance with these standards.

Ogboinbiri Site Development Agreement - Final

Final Audit Report 2025-04-07

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